

Risk Review

By: BT
Date: 10-9-13

LAND AND BUILDING LEASE AGREEMENT

WY4 DELL
Approved as to
form only:

P. White
Date: 10/9/2013

This Land and Building Lease Agreement (the "Agreement") made this _____ day of _____, 20____, between The City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming, with its principal offices located at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, hereinafter designated LESSOR or City and Verizon Wireless (VAW) LLC d/b/a Verizon Wireless with its principal offices at One Verizon Way, Mail Stop 4AW100, Basking Ridge, New Jersey 07920 (telephone number 866-862-4404), hereinafter designated LESSEE. LESSOR and LESSEE are at times collectively referred to hereinafter as the "Parties" or individually as a "Party."

WITNESSETH

In consideration of the mutual covenants contained herein and intending to be legally bound hereby, the Parties hereto agree as follows:

1. **PREMISES.** LESSOR hereby leases to LESSEE a portion of that certain parcel of property (the entirety of the LESSOR's property is referred to hereinafter as the "Property"), located at 4500 Dell Range Boulevard, Cheyenne, Wyoming, also identified as Laramie County PIN #14662241602100, which portion consists of (i) antenna space on the roof of the building ("Building") located on the Property (the "Antenna Space"); and (ii) a 20.00' by 35.00' parcel of land containing 700 square feet (the "Exterior Space"), together with the non-exclusive right (the "Ingress Right of Way") for ingress and egress from a public right-of-way, seven (7) days a week, twenty four (24) hours a day, over the Property and in and through the Building (as hereinafter defined) for the purpose of installation, operation and maintenance of communications equipment; the right and sufficient space for the installation and maintenance of wires, cables, conduits and pipes (the "Cabling Space") running between the Antenna Space and the Exterior Space; and the right to install, maintain, replace and repair wires, cables, conduits and pipes over, under and along a twelve foot wide right-of-way (the "Utilities Right of Way") extending from the nearest public right-of-way to the Exterior Space. The Antenna Space, Exterior Space, Ingress Right of Way, Cabling Space and Utilities Right of Way are hereinafter collectively referred to as the "Premises" and are shown on the survey and site plan attached as Exhibits "A-1" and "A-2" hereto and made a part hereof. In the event there are not sufficient electric and telephone utility sources located within the Building, LESSOR agrees to grant LESSEE or the local utility provider the right to install such utilities on, over and/or under the Property and through the Building necessary for LESSEE to operate its communications facility, provided the location of such utilities shall be as reasonably designated by LESSOR. Further, in the event any public utility is unable to use the Utilities Right of Way, the LESSOR hereby agrees to grant an additional right-of-way either to the LESSEE or to the public utility at no cost to the LESSEE. The Property is also legally described on Exhibit "B" attached hereto.

Notwithstanding the foregoing provisions, it is mutually understood and agreed that LESSEE shall have access to the interior of the Building on the Property only during normal business hours and in the event of an emergency, and that LESSEE shall have access to the Antenna Space on the roof of the Building, seven (7) days a week, twenty four (24) hours a day, only if LESSEE installs a ladder, after securing the written consent

of the City, which can be secured to prevent access to the roof of the Building by persons other than authorized representatives of the LESSEE. As used herein, the term "emergency" shall mean an event that shuts-down LESSEE's equipment or that may result in imminent harm to persons or property.

2. DELIVERY. LESSOR shall deliver the Premises to LESSEE on the Commencement Date, as hereinafter defined, in a condition ready for LESSEE's construction of its improvements and clean and free of debris. LESSOR represents and warrants to LESSEE that as of the Commencement Date, the existing structure of the Building (including without limitation the roof, foundations, exterior walls), the common areas and all Building systems (including, without limitation, the plumbing, electrical, ventilating, air conditioning, heating, and loading doors, if any) are (a) in good operating condition and free of any leakage; (b) in compliance with all Laws (as defined in Paragraph 35 below); and (c) free of all hazardous substances, as such term may be defined under any applicable federal, state or local law. If a breach of the representation and warranty contained in this Paragraph 3 is discovered at any time during the Term, as hereinafter defined, LESSOR shall, promptly after receipt of written notice from LESSEE setting forth a description of such non-compliance, rectify same at LESSOR's expense. LESSOR further represents and warrants to LESSEE that LESSOR has no knowledge of any claim having been made by any governmental agency that a violation of applicable building codes, regulations, or ordinances exists with regard to the Building, or any part thereof, as of the Commencement Date.

3. TERM; RENTAL; ELECTRICAL.

a. This Agreement shall be effective as of the date of execution by both Parties, provided, however, the initial term shall be for five (5) years and shall commence on the Commencement Date (as hereinafter defined) at which time rental payments shall commence and be due at a total annual rental of Fifteen Thousand and 00/100 Dollars (\$15,000.00) to be paid in equal monthly installments on the first day of the month, in advance, to the City Treasurer of the City of Cheyenne, 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, or to such other person, firm or place as LESSOR may, from time to time, designate in writing at least thirty (30) days in advance of any rental payment date by notice given in accordance with Paragraph 23 below. The Agreement shall commence on the 1st day of December, 2013 ("Commencement Date"). LESSOR and LESSEE acknowledge and agree that initial rental payment(s) shall not actually be sent by LESSEE until thirty (30) days after the Commencement Date. By way of illustration of the preceding sentence, if the Commencement Date is January 1, LESSEE shall send to the LESSOR the rental payments for January 1 and February 1 by February 1.

Upon agreement of the Parties, LESSEE may pay rent by electronic funds transfer and in such event, LESSOR agrees to provide to LESSEE bank routing information for such purpose upon request of LESSEE.

b. LESSOR hereby agrees to provide to LESSEE certain documentation (the "Rental Documentation") evidencing LESSOR's interest in, and right to receive payments under, this Agreement, including without limitation: (i) documentation, acceptable to LESSEE in

LESSEE's reasonable discretion, evidencing LESSOR's good and sufficient title to and/or interest in the Property and right to receive rental payments and other benefits hereunder; (ii) a complete and fully executed Internal Revenue Service Form W-9, or equivalent, in a form acceptable to LESSEE, for any party to whom rental payments are to be made pursuant to this Agreement; and (iii) other documentation requested by LESSEE in LESSEE's reasonable discretion. From time to time during the Term of this Agreement and within thirty (30) days of a written request from LESSEE, LESSOR agrees to provide updated Rental Documentation in a form reasonably acceptable to LESSEE. The Rental Documentation shall be provided to LESSEE in accordance with the provisions of and at the address given in Paragraph 25. Delivery of Rental Documentation to LESSEE shall be a prerequisite for the payment of any rent by LESSEE and notwithstanding anything to the contrary herein, LESSEE shall have no obligation to make any rental payments until Rental Documentation has been supplied to LESSEE as provided herein; provided, if LESSOR provides the Rental Documentation required herein and LESSEE fails to pay any amounts due hereunder in a timely manner, LESSEE shall be in breach and LESSOR (subject to all notice and cure periods provided herein) shall have all rights and remedies hereunder.

Within fifteen (15) days of obtaining an interest in the Property or this Agreement, any assignee(s), transferee(s) or other successor(s) in interest of LESSOR shall provide to LESSEE Rental Documentation in the manner set forth in the preceding paragraph. From time to time during the Term of this Agreement and within thirty (30) days of a written request from LESSEE, any assignee(s) or transferee(s) of LESSOR agrees to provide updated Rental Documentation in a form reasonably acceptable to LESSEE. Delivery of Rental Documentation to LESSEE by any assignee(s), transferee(s) or other successor(s) in interest of LESSOR shall be a prerequisite for the payment of any rent by LESSEE to such party and notwithstanding anything to the contrary herein, LESSEE shall have no obligation to make any rental payments to any assignee(s), transferee(s) or other successor(s) in interest of LESSOR until Rental Documentation has been supplied to LESSEE as provided herein.

c. LESSOR shall, at all times during the Term, provide electrical service and telephone service access within the Premises. LESSEE shall furnish and install an electrical sub-meter at the Premises for the measurement of electrical power used by LESSEE's installation. In the event such sub-meter is installed, the LESSEE shall pay the utility directly for its power consumption, if billed by the utility, and if not billed by the utility, then the LESSEE shall pay the LESSOR thirty (30) days after receipt of an invoice from LESSOR indicating the usage amount based upon LESSOR's reading of the sub-meter. All invoices for power consumption shall be sent by LESSOR to LESSEE at: First Energy c/o Verizon Wireless, P.O. Box 182727, Columbus, OH 43218. LESSEE shall be permitted at any time during the Term, to install, maintain and/or provide access to and use of, as necessary (during any power interruption at the Premises), a temporary power source, and all related equipment and appurtenances within the Premises, or elsewhere on the Property in such locations as reasonably approved by LESSOR. LESSEE shall have the right to install conduits connecting the temporary power source and related appurtenances to the Premises.

4. EXTENSIONS. This Agreement shall automatically be extended for four (4) additional five (5) year terms unless LESSEE terminates it at the end of the then current term by giving LESSOR written notice of the intent to terminate at least six (6) months prior to the end of the then current term.

5. EXTENSION RENTALS. The annual rental for the first (1st) five (5) year extension term shall be increased to Sixteen Thousand One Hundred Twenty-Five and 00/100 Dollars (\$16,125.00); the annual rental for the second (2nd) five (5) year extension term shall be increased to Seventeen Thousand Three Hundred Thirty-Four and 00/100 Dollars (\$17,334.00); the annual rental for the third (3rd) five (5) year extension term shall be increased to Eighteen Thousand Six Hundred Thirty-Four and 00/100 Dollars (\$18,634.00); and the annual rental for the fourth (4th) five (5) year extension term shall be increased to Twenty Thousand Thirty-Two and 00/100 Dollars (\$20,032.00).

6. ADDITIONAL EXTENSIONS. At the end of the fourth (4th) five (5) year extension, this Agreement shall terminate in the absence of an express written agreement duly executed by the Parties which shall have the effect of extending the relationship of LESSOR and LESSEE in accordance with such covenants, terms and conditions as may then be agreed upon by the Parties. The initial term and all extensions shall be collectively referred to herein as the "Term".

7. TAXES. It is mutually understood and agreed that the Property located at 4500 Dell Range Boulevard, Cheyenne, Wyoming is used by LESSOR for governmental purposes and that said Property is currently designated as tax-exempt by the Laramie County Assessor. It is also mutually understood and agreed that, following the execution of this Agreement, the Laramie County Assessor may determine that the Property is no longer exempt from taxation. LESSEE shall have the responsibility to pay: (1) any personal property, real estate taxes, assessments, and charges levied against the Premises to be used and occupied by LESSEE, (2) all other taxes, assessments, and charges levied against the Property which result from LESSEE's use of the Premises or the installation, maintenance, or operation of the LESSEE's improvements, (3) any sales tax imposed on the rent (except to the extent that LESSEE is or may become exempt from the payment of sales tax in the jurisdiction in which the Property is located), and (4) any increase in real estate taxes levied against the Property which arises from the LESSEE's improvements or LESSEE's use of the Premises. LESSEE shall be responsible for the payment of any taxes, levies, assessments and other charges, including franchise and similar taxes imposed upon the business conducted by LESSEE at the Property. Notwithstanding the foregoing, LESSEE shall not have the obligation to pay any tax, assessment, or charge that LESSEE is disputing in good faith in appropriate proceedings prior to a final determination that such tax is properly assessed provided that no lien attaches to the Property. Nothing in this Paragraph shall be construed as making LESSEE liable for any portion of LESSOR's income taxes in connection with any Property or otherwise.

LESSEE shall have the right, at its sole option and at its sole cost and expense, to appeal, challenge or seek modification of any tax assessment or billing for which LESSEE is wholly or partly responsible for payment. LESSOR shall reasonably cooperate with LESSEE at

LESSEE's expense in filing, prosecuting and perfecting any appeal or challenge to taxes as set forth in the preceding sentence, including but not limited to, executing any consent, appeal or other similar document. In the event that as a result of any appeal or challenge by LESSEE, there is a reduction, credit or repayment received by the LESSOR for any taxes previously paid by LESSEE, LESSOR agrees to promptly reimburse to LESSEE the amount of said reduction, credit or repayment. In the event that LESSEE does not have the standing rights to pursue a good faith and reasonable dispute of any taxes under this paragraph, LESSOR will pursue such dispute at LESSEE's sole cost and expense upon written request of LESSEE.

8. USE; GOVERNMENTAL APPROVALS. LESSEE shall use the Premises for the purpose of constructing, maintaining, repairing and operating a communications facility and uses incidental thereto. A security fence consisting of chain link construction or similar but comparable construction may be placed around the perimeter of the Exterior Space upon the written approval of LESSOR. Subject to applicable building codes, regulations and ordinances, all improvements, equipment, antennas and conduits shall be at LESSEE's expense and their installation shall be at the discretion and option of LESSEE. LESSEE shall have the right to replace, repair, add or otherwise modify its utilities, equipment, antennas and/or conduits or any portion thereof and the frequencies over which the equipment operates, whether the equipment, antennas, conduits or frequencies are specified or not on any exhibit attached hereto, during the Term. It is understood and agreed that LESSEE's ability to use the Premises is contingent upon its obtaining after the execution date of this Agreement all of the certificates, permits and other approvals (collectively the "Governmental Approvals") that may be required by any Federal, State or Local authorities as well as satisfactory soil boring tests which will permit LESSEE use of the Premises as set forth above. In the event that (i) any of such applications for such Governmental Approvals should be finally rejected; (ii) any Governmental Approval issued to LESSEE is canceled, expires, lapses, or is otherwise withdrawn or terminated by governmental authority; (iii) LESSEE determines that such Governmental Approvals may not be obtained in a timely manner; (iv) LESSEE determines that any soil boring tests are unsatisfactory; (v) LESSEE determines that the Premises is no longer technically compatible for its use, or (vi) LESSEE, in its sole discretion, determines that the use of the Premises is obsolete or unnecessary, LESSEE shall have the right to terminate this Agreement. Notice of LESSEE's exercise of its right to terminate shall be given to LESSOR in writing by certified mail, return receipt requested, and shall be effective upon the mailing of such notice by LESSEE, or upon such later date as designated by LESSEE. All rentals paid to said termination date shall be retained by LESSOR. Upon such termination, this Agreement shall be of no further force or effect except to the extent of the representations, warranties and indemnities made by each Party to the other hereunder. Otherwise, the LESSEE shall have no further obligations for the payment of rent to LESSOR.

9. MAINTENANCE.

a. During the Term, LESSEE will maintain the non-structural portions of the Premises in good condition, reasonable wear and tear and casualty damage excepted, but excluding any items which are the responsibility of LESSOR pursuant to Paragraph 10.b below.

b. During the Term, LESSOR shall maintain, in good operating condition and repair, the structural elements of the Building and the Premises, and all Building systems (including, but not limited to, the foundations, exterior walls, structural condition of interior bearing walls, exterior roof fire sprinkler and/or standpipe and hose or other automatic fire extinguishing system, fire hydrants, parking lots, walkways, parkways, driveways, landscaping, fences, signs and utility systems serving the common areas) and the common areas. LESSOR shall repair any defect in the above within sixty (60) days, or such shorter period as may be required by any governmental authority having jurisdiction, after receipt of written notice from LESSEE describing such defect, unless the defect constitutes an emergency, in which case LESSOR shall cure the defect as quickly as possible, but not later than thirty (30) days after receipt of notice. If LESSOR fails to make such repairs, LESSEE may elect any of the remedies specified in Paragraph 28 relating to breaches of this Agreement.

c. In addition to the provisions of Paragraph 10.a., of this Agreement, LESSEE agrees, at its sole risk and expense, to relocate its antennas located on the roof of the Building on a temporary basis if necessary to permit LESSOR to perform maintenance, repair or similar work on the roof of the Building; provided, any such relocation shall be subject to romanettes (i, iii, & iv) below. In the event LESSOR, solely for its convenience, requests that LESSEE remove its equipment from the Building on a temporary basis, LESSEE shall be obligated to temporarily remove its equipment from the Building; provided:

i. LESSOR provides a temporary relocation on the Property which is similar to LESSEE's existing location in size and is fully compatible for LESSEE's use, in LESSEE's reasonable determination;

ii. LESSOR pays all costs incurred by LESSEE for relocating LESSEE's equipment to the temporary relocation and improving the temporary relocation so that it is fully compatible for LESSEE's use, in LESSEE's reasonable determination;

iii. LESSOR gives LESSEE at least ninety (90) days written notice prior to requiring LESSEE to relocate;

iv. LESSEE's use at the Premises is not interrupted or diminished during the relocation and LESSEE is allowed, if necessary, in LESSEE's reasonable determination, to place a temporary installation on the Property during any such relocation; and

v. LESSEE is permitted, within reasonable time limits, to return its equipment and its facilities to its original location from the temporary location with all costs for the same being paid by LESSOR.

10. INDEMNIFICATION, GOVERNMENTAL IMMUNITY, AND LIMITATION OF LIABILITY.

a. GOVERNMENTAL IMMUNITY: In the event the Property or the Premises, or any component of the Premises, as described in Paragraph 1 of this Agreement

become, for any reason, is determined by LESSEE to be unsuitable for the installation or maintenance of communications facilities or unsuitable for LESSEE'S purposes as stated herein, LESSOR shall have no obligation to provide an alternative site for the installation of LESSEE'S communications facilities and LESSEE may elect to terminate this Agreement subject to the provisions hereof. In the event LESSOR breaches this Agreement or LESSEE suffers any damage or injury due to the negligence of any of LESSOR's officers, employees, agents, representatives or contractors, the LESSOR'S liability shall be limited as stated in sub-paragraph c., of this Paragraph 10 and shall be further limited to the amount of rent to be paid by LESSEE during the then existing term during which the breach of negligence has occurred. Except as provided herein and in paragraph 30 of this Agreement, nothing in this Agreement shall be construed as a waiver of LESSOR'S governmental immunity and LESSOR retains all immunities and defenses available to LESSOR as a governmental entity under the Wyoming Governmental Claims Act, W.S. §1-39-101 *et seq.*

b. INDEMNIFICATION: LESSEE shall insure, defend and indemnify LESSOR from and against property damage, personal injury, paralysis, or death which may result from or arise in any way from LESSEE's use and occupancy of the Premises; provided, however, LESSEE shall not indemnify and hold LESSOR harmless for property damage, personal injury, paralysis, or death which may result from or arise in any way from the negligent or willful misconduct of LESSOR, its officers, employees, agents, representatives, or contractors. Notwithstanding the foregoing, LESSOR may be subjected to liability for the negligence of its officers, employees, agents, representatives, or contractors only to the extent specified in sub-paragraph c., of this Paragraph and only to the extent of the limitations specified in or in Paragraph 30 of this Agreement pertaining to environmental liability. Except as otherwise provided in this Agreement, LESSOR does not agree to insure, defend or indemnify LESSEE.

c. LIMITATION OF LIABILITY. Except as provided herein and except for environmental liability provided for in paragraph 30 of this Agreement, neither Party shall be liable to the other, or to any of their respective officers, agents, representatives, employees, or assigns for any lost revenue, lost profits, loss of technology, rights or services, incidental, punitive, indirect, special or consequential damages, loss of data, or interruption or loss of use of service, even if advised of the possibility of such damages, under any theory of contract liability, tort liability (including negligence), strict liability or otherwise.

11. INSURANCE.

a. LESSEE shall, during the term of this Agreement, continuously maintain fire and casualty insurance, with extended coverage, for any and all communications equipment, facilities, wires, cables, conduits, pipes and other installations placed on the Premises or the Property by LESSEE. LESSEE hereby waives and releases any and all rights of action for negligence against LESSOR which may hereafter arise on account of damage to said communications equipment, the Premises or to the Property, resulting from any fire, or other casualty of the kind covered by standard fire insurance policies with extended coverage, regardless of whether or not, or in what amounts, such insurance is now or hereafter carried by

the Parties, or either of them. This waiver and release shall apply to any claims under or through LESSEE as a result of any asserted right of subrogation. All such policies of insurance obtained by LESSEE concerning communications equipment, facilities, wires, cables, conduits, pipes and other installations placed on the Premises or the Property by LESSEE shall waive the insurer's right of subrogation against the LESSOR.

b. LESSEE agrees at its own cost and expense to maintain the following insurance coverage throughout the term of this Agreement.

1. LESSEE shall be responsible for procuring and maintaining the insurance coverages specified herein and shall file Certificate of Insurances with LESSOR verifying that each type of insurance coverage listed below is in effect at all times during the term of this Agreement and at all times that LESEEE, or any of its officers, agents, employees, contractors, or sub-contractors are present on the Premises for any purpose.

2. The Certificates of Insurance shall be submitted to and approved by LESSOR prior to the Commencement Date of this Agreement and shall be submitted to LESSOR on a periodic basis thereafter so as to enable the LESSOR to verify that the insurance coverages specified herein are in effect throughout the term of this Agreement.

<u>Type of Coverage</u>	<u>Minimum Limits</u>
Commercial General Liability (Including Products and Completed Operations; Explosion, Collapse and Underground if applicable to the hazards of a specific project.)	\$2,000,000 per Occurrence \$2,000,000 Aggregate
Business Automobile Liability	\$2,000,000 CSL
Workers' Compensation OR Employer's Liability	Statutory \$500,000 Each Accident \$500,000 Each Disease- Policy Limit \$500,000 Disease/Each Employee

3. It is understood and agreed that these policies are primary and not contributory.

4. The City of Cheyenne shall be named as an **additional insured** on the LESSEE's insurance policies, except workers' compensation.

5. The City has the right to reject a certificate of insurance if an insurance company providing any coverage required by this Agreement is widely regarded in the insurance industry as financially unstable. Any insurance company providing coverage under this Agreement shall have a minimum A.M. Best rating of A-VII (excellent).

6. The City has the right to review the insurance certificates of any or all subcontractors engaged by the LESSEE to perform any work in connection with this Agreement. Further, the City requires that the insurance coverage of any subcontractor engaged by LESSEE be at least equivalent to that required of the LESSEE.

12. Intentionally Omitted.

13. ANNUAL TERMINATION. Notwithstanding anything to the contrary contained herein, provided LESSEE is not in default hereunder beyond applicable notice and cure periods, LESSEE shall have the right to terminate this Agreement upon the annual anniversary of the Commencement Date provided that three (3) months prior notice is given to LESSOR.

14. INTERFERENCE. LESSEE agrees to install equipment of the type and frequency which will not cause harmful interference which is measurable in accordance with then existing industry standards to any equipment of LESSOR or other lessees of the Property which existed on the Property prior to the date this Agreement is executed by the Parties. In the event any after-installed LESSEE's equipment causes such interference, and after LESSOR has notified LESSEE in writing of such interference, LESSEE will take all commercially reasonable steps necessary to correct and eliminate the interference, including but not limited to, at LESSEE's option, powering down such equipment and later powering up such equipment for intermittent testing. In no event will LESSOR be entitled to terminate this Agreement or relocate the equipment as long as LESSEE is making a good faith effort to remedy the interference issue. LESSOR agrees that LESSOR and any other tenants of the Property who currently have or in the future take possession of the Property will be permitted to install only such equipment that is of the type and frequency which will not cause harmful interference which is measurable in accordance with then existing industry standards to the then existing equipment of LESSEE. The Parties acknowledge that there will not be an adequate remedy at law for noncompliance with the provisions of this Paragraph and therefore, either Party shall have the right to equitable remedies, such as, without limitation, injunctive relief and specific performance.

15. REMOVAL AT END OF TERM. LESSEE shall, upon expiration of the Term, or within ninety (90) days after any earlier termination of the Agreement, remove its building(s), antenna structure(s) (except footings), equipment, conduits, fixtures and all personal property and restore the Premises to its original condition, reasonable wear and tear and casualty damage excepted. LESSOR agrees and acknowledges that all of the equipment, conduits, fixtures and personal property of LESSEE shall remain the personal property of LESSEE and LESSEE shall have the right to remove the same at any time during the Term, whether or not said items are considered fixtures and attachments to real property under applicable Laws (as defined in Paragraph 35 below). If such time for removal causes LESSEE to remain on the Premises after

termination of this Agreement, LESSEE shall pay rent at the then existing monthly rate or on the existing monthly pro-rata basis if based upon a longer payment term, until such time as the removal of the building, antenna structure, fixtures and all personal property are completed.

16. HOLDOVER. LESSEE has no right to retain possession of the Premises or any part thereof beyond the expiration of that removal period set forth in Paragraph 15 herein, unless the Parties are negotiating a new lease or lease extension in good faith. In the event that the Parties are not in the process of negotiating a new lease or lease extension in good faith, and LESSEE holds over in violation of Paragraph 15 and this Paragraph 16, then the rent then in effect payable from and after the time of the expiration or earlier removal period set forth in Paragraph 16 shall be equal to the rent applicable during the month immediately preceding such expiration or earlier termination.

17. Intentionally Omitted.

18. RIGHTS UPON SALE. Should LESSOR, at any time during the Term decide (i) to sell or transfer all or any part of the Property or the Building thereon to a purchaser other than LESSEE, or (ii) to grant to a third party by easement or other legal instrument an interest in and to that portion of the Building and/or Property occupied by LESSEE, or a larger portion thereof, for the purpose of operating and maintaining communications facilities or the management thereof, such sale or grant of an easement or interest therein shall be under and subject to this Agreement and any such purchaser or transferee shall recognize LESSEE's rights hereunder under the terms of this Agreement.

19. QUIET ENJOYMENT. Subject to the terms and conditions of this Agreement, LESSOR covenants that LESSEE, on paying the rent and performing the covenants herein, shall peaceably and quietly have, hold and enjoy the Premises.

20. TITLE. LESSOR represents and warrants to LESSEE as of the execution date of this Agreement, and covenants during the Term that LESSOR is seized of good and sufficient title and interest to the Property and has full authority to enter into and execute this Agreement. LESSOR further covenants during the Term that there are no liens, judgments or impediments of title on the Property, or affecting LESSOR's title to the same and that there are no covenants, easements or restrictions which prevent or adversely affect the use or occupancy of the Premises by LESSEE as set forth above.

21. INTEGRATION. It is agreed and understood that this Agreement contains all agreements, promises and understandings between LESSOR and LESSEE and that no verbal or oral agreements, promises or understandings shall be binding upon either LESSOR or LESSEE in any dispute, controversy or proceeding at law, and any addition, variation or modification to this Agreement shall be void and ineffective unless made in writing signed by the Parties. In the event any provision of the Agreement is found to be invalid or unenforceable, such finding shall not affect the validity and enforceability of the remaining provisions of this Agreement. The failure of either Party to insist upon strict performance of any of the terms or conditions of this Agreement or to exercise any of its rights under the Agreement shall not waive such rights and

such Party shall have the right to enforce such rights at any time and take such action as may be lawful and authorized under this Agreement, in law or in equity.

22. Intentionally Omitted.

23. ASSIGNMENT. This Agreement may be sold, assigned or transferred by the LESSEE without any approval or consent of the LESSOR to the LESSEE's principal, affiliates, subsidiaries of its principal or to any entity which acquires all or substantially all of LESSEE's assets in the market defined by the Federal Communications Commission in which the Property is located by reason of a merger, acquisition or other business reorganization. As to other parties, this Agreement may not be sold, assigned or transferred without the written consent of the LESSOR, which such consent will not be unreasonably withheld, delayed or conditioned. No change of stock ownership, partnership interest or control of LESSEE or transfer upon partnership or corporate dissolution of LESSEE shall constitute an assignment hereunder.

24. NOTICES. All notices hereunder must be in writing and shall be deemed validly given if sent by certified mail, return receipt requested or by commercial courier, provided the courier's regular business is delivery service and provided further that it guarantees delivery to the addressee by the end of the next business day following the courier's receipt from the sender, addressed as follows (or any other address that the Party to be notified may have designated to the sender by like notice):

LESSOR: City of Cheyenne
2101 O'Neil Avenue
Cheyenne, WY 82001

LESSEE: Verizon Wireless (VAW) LLC
d/b/a Verizon Wireless
180 Washington Valley Road
Bedminster, New Jersey 07921
Attention: Network Real Estate

Notice shall be effective upon actual receipt or refusal as shown on the receipt obtained pursuant to the foregoing.

25. SUCCESSORS. This Agreement shall extend to and bind the heirs, personal representative, successors and assigns of the Parties hereto.

26. SUBORDINATION AND NON-DISTURBANCE. LESSOR shall obtain not later than fifteen (15) days following the execution of this Agreement, a Non-Disturbance Agreement, as defined below, from its existing mortgagee(s), ground lessors and master lessors, if any, of the Property. At LESSOR's option, this Agreement shall be subordinate to any future master lease, ground lease, mortgage, deed of trust or other security interest (a "Mortgage") by LESSOR which from time to time may encumber all or part of the Property, Building or right-of-way; provided, however, as a condition precedent to LESSEE being required to subordinate its

interest in this Agreement to any future Mortgage covering the Building, LESSOR shall obtain for LESSEE's benefit a non-disturbance and attornment agreement for LESSEE's benefit in the form reasonably satisfactory to LESSEE, and containing the terms described below (the "Non-Disturbance Agreement"), and shall recognize LESSEE's right to remain in occupancy of and have access to the Premises as long as LESSEE is not in default of this Agreement beyond applicable notice and cure periods. The Non-Disturbance Agreement shall include the encumbering party's ("Lender's") agreement that, if Lender or its successor-in-interest or any purchaser of Lender's or its successor's interest (a "Purchaser") acquires an ownership interest in the Building, Lender or such successor-in-interest or Purchaser will (1) honor all of the terms of this Agreement, (2) fulfill LESSOR's obligations under the Agreement, and (3) promptly cure all of the then existing LESSOR defaults under the Agreement. Such Non-Disturbance Agreement must be binding on all of Lender's participants in the subject loan (if any) and on all successors and assigns of Lender and/or its participants and on all Purchasers. In return for such Non-Disturbance Agreement, LESSEE will execute an agreement for Lender's benefit in which LESSEE (1) confirms that the Agreement is subordinate to the Mortgage or other real property interest in favor of Lender, (2) agrees to attorn to Lender if Lender becomes the owner of the Building and (3) agrees to accept a cure by Lender of any of LESSOR's defaults, provided such cure is completed within the deadline applicable to LESSOR. In the event LESSOR defaults in the payment and/or other performance of any mortgage or other real property interest encumbering the Property, LESSEE, may, at its sole option and without obligation, cure or correct LESSOR's default and upon doing so, LESSEE shall be subrogated to any and all rights, titles, liens and equities of the holders of such mortgage or other real property interest and LESSEE shall be entitled to deduct and setoff against all rents that may otherwise become due under this Agreement the sums paid by LESSEE to cure or correct such defaults.

27. RECORDING. LESSOR agrees to execute a Memorandum of this Agreement which LESSEE may record with the appropriate recording officer. The date set forth in the Memorandum of Lease is for recording purposes only and bears no reference to commencement of either the Term or rent payments.

28. DEFAULT.

a. In the event there is a breach by LESSEE with respect to any of the provisions of this Agreement or its obligations under it, including the payment of rent, LESSOR shall give LESSEE written notice of such breach. After receipt of such written notice, LESSEE shall have fifteen (15) days in which to cure any monetary breach and thirty (30) days in which to cure any non-monetary breach, provided LESSEE shall have such extended period as may be required beyond the thirty (30) days if the nature of the cure is such that it reasonably requires more than thirty (30) days and LESSEE commences the cure within the thirty (30) day period and thereafter continuously and diligently pursues the cure to completion. LESSOR may not maintain any action or effect any remedies for default against LESSEE unless and until LESSEE has failed to cure the breach within the time periods provided in this Paragraph.

b. In the event there is a breach by LESSOR with respect to any of the provisions of this Agreement or its obligations under it, LESSEE shall give LESSOR written

notice of such breach. After receipt of such written notice, LESSOR shall have thirty (30) days in which to cure any such breach, provided LESSOR shall have such extended period as may be required beyond the thirty (30) days if the nature of the cure is such that it reasonably requires more than thirty (30) days and LESSOR commences the cure within the thirty (30) day period and thereafter continuously and diligently pursues the cure to completion. LESSEE may not maintain any action or effect any remedies for default against LESSOR unless and until LESSOR has failed to cure the breach within the time periods provided in this Paragraph. Notwithstanding the foregoing to the contrary, LESSOR'S liability for any breach of this Agreement shall be limited as stated in Paragraph 10 of this Agreement.

29. REMEDIES. In the event of a default by either Party with respect to a material provision of this Agreement, the non-defaulting Party may terminate the Agreement and/or pursue any remedy now or hereafter available to the non-defaulting Party under this Agreement and/or under the laws of the State of Wyoming; provided, however, in the event of LESSOR'S default, LESSOR's liability shall be limited as stated in Paragraph 10 of this Agreement.

30. ENVIRONMENTAL.

a. LESSOR will be responsible for all obligations of compliance with any and all environmental and industrial hygiene laws, including any regulations, guidelines, standards, or policies of any governmental authorities regulating or imposing standards of liability or standards of conduct with regard to any environmental or industrial hygiene conditions or concerns as may now or at any time hereafter be in effect, that are in any way related to the condition of the Premises., as the same exist as of the date of execution of this Agreement.

b. LESSEE will be responsible for all obligations of compliance with any and all environmental and industrial hygiene laws, including any regulations, guidelines, standards, or policies of any governmental authorities regulating or imposing standards of liability or standards of conduct with regard to any environmental or industrial hygiene conditions or concerns as may now or at any time hereafter be in effect, that are in any way related to the condition of the Premises to the extent that such conditions or concerns are caused by specific activities of LESSEE in or upon the Premises after the date of execution of this Agreement.

c. LESSEE shall hold LESSOR harmless and indemnify LESSOR from and assume all duties, responsibility and liability at LESSEE's sole cost and expense, for all duties, responsibilities, and liability (for payment of penalties, sanctions, forfeitures, losses, costs, or damages) and for responding to any action, notice, claim, order, summons, citation, directive, litigation, investigation or proceeding which is in any way related to: a) LESSEE'S failure to comply with any environmental or industrial hygiene law, including without limitation any regulations, guidelines, standards, or policies of any governmental authorities regulating or imposing standards of liability or standards of conduct with regard to any environmental or industrial hygiene concerns or conditions as may now or at any time hereafter be in effect if such non-compliance results from conditions caused by LESSEE; and b) any environmental or

industrial hygiene conditions arising out of or in any way related to the condition of the Premises or activities conducted thereon if such environmental conditions are caused by LESSEE.

d. In the event that abatement of hazardous materials is required in connection with the construction of the Premises, LESSOR shall take responsibility as generator of the waste resulting from the abatement and shall cooperate with any necessary abatement procedures, including signing all necessary documents and manifest required for abatement. "Hazardous Material" shall mean any material, substance, chemical or waste identified as hazardous, toxic, solid waste or dangerous in any applicable federal, state or local Law or regulation (including petroleum, impacted soils and asbestos).

31. CASUALTY. In the event of damage by fire or other casualty to the Building or Premises that cannot reasonably be expected to be repaired within forty-five (45) days following same or, if the Property is damaged by fire or other casualty so that such damage may reasonably be expected to disrupt LESSEE's operations at the Premises for more than forty-five (45) days, then LESSEE may, at any time following such fire or other casualty, provided LESSOR has not completed the restoration required to permit LESSEE to resume its operation at the Premises, terminate this Agreement upon fifteen (15) days prior written notice to LESSOR. Any such notice of termination shall cause this Agreement to expire with the same force and effect as though the date set forth in such notice were the date originally set as the expiration date of this Agreement and the Parties shall make an appropriate adjustment, as of such termination date, with respect to payments due to the other under this Agreement. Notwithstanding the foregoing, the rent shall abate during the period of repair following such fire or other casualty in proportion to the degree to which LESSEE's use of the Premises is impaired. Notwithstanding the foregoing provisions, the LESSOR'S liability shall be limited as stated in Paragraph 10 of this Agreement.

32. CONDEMNATION. In the event of any condemnation of all or any portion of the Premises, this Agreement shall terminate as to the part so taken as of the date the condemning authority takes title or possession, whichever occurs first. If as a result of a partial condemnation of the Premises, LESSEE, in LESSEE's sole discretion, is unable to use the Premises for the purposes intended hereunder, or if such condemnation may reasonably be expected to disrupt LESSEE's operations at the Premises for more than forty-five (45) days, LESSEE may, at LESSEE's option, to be exercised in writing within fifteen (15) days after LESSOR shall have given LESSEE written notice of such taking (or in the absence of such notice, within fifteen (15) days after the condemning authority shall have taken possession), terminate this Agreement as of the date the condemning authority takes such possession. LESSEE may on its own behalf make a claim in any condemnation proceeding involving the Premises for losses related to the equipment, conduits, fixtures, its relocation costs and its damages and losses (but not for the loss of its leasehold interest). Any such notice of termination shall cause this Agreement to expire with the same force and effect as though the date set forth in such notice were the date originally set as the expiration date of this Agreement and the Parties shall make an appropriate adjustment as of such termination date with respect to payments due to the other under this Agreement. If LESSEE does not terminate this Agreement in accordance with the foregoing, this Agreement shall remain in full force and effect as to the portion of the

Premises remaining, except that the rent shall be reduced in the same proportion as the rentable area of the Premises taken bears to the total rentable area of the Premises. Notwithstanding the foregoing provisions, the LESSOR'S liability shall be limited as stated in Paragraph 10 of this Agreement.

33. SUBMISSION OF AGREEMENT/PARTIAL INVALIDITY/AUTHORITY. The submission of this Agreement for examination does not constitute an offer to lease the Premises and this Agreement becomes effective only upon the full execution of this Agreement by the Parties. If any provision herein is invalid, it shall be considered deleted from this Agreement and shall not invalidate the remaining provisions of this Agreement. Each of the Parties hereto warrants to the other that the person or persons executing this Agreement on behalf of such Party has the full right, power and authority to enter into and execute this Agreement on such Party's behalf and that no consent from any other person or entity is necessary as a condition precedent to the legal effect of this Agreement.

34. APPLICABLE LAWS. During the Term, LESSEE shall, in respect to the condition of the Premises and at LESSEE's sole cost and expense, comply with: (a) all applicable laws, rules, regulations, ordinances, directives, covenants, easements, zoning and land use regulations, and restrictions of record, permits, building codes, and the requirements of any applicable fire insurance underwriter or rating bureau, now in effect or which may hereafter come into effect (including, without limitation, the Americans with Disabilities Act and laws regulating hazardous substances) (collectively "Laws") relating solely to LESSEE's specific and unique nature of use of the Premises (other than general office use); and (b) all building codes requiring modifications to the Premises due to the improvements being made by LESSEE in the Premises.

35. SURVIVAL. The provisions of the Agreement relating to indemnification and limitation of liability from one Party to the other Party shall survive any termination or expiration of this Agreement. Additionally, any provisions of this Agreement which require performance subsequent to the termination or expiration of this Agreement shall also survive such termination or expiration.

36. CAPTIONS. The captions contained in this Agreement are inserted for convenience only and are not intended to be part of the Agreement. They shall not affect or be utilized in the construction or interpretation of the Agreement.

37. INDEPENDENT CONTRACTOR. LESSEE shall function as an independent contractor for the purposes of this Agreement. LESSEE shall assume sole responsibility for any debts or liabilities that may be incurred by LESSEE in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing LESSEE, its agents or employees to act as an agent or representative of or on behalf of LESSOR or to incur any obligation of any kind on the behalf of LESSOR.

38. APPLICABLE LAW AND VENUE. The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over this Agreement and the venue shall be the First Judicial District, Laramie County, Wyoming.

IN WITNESS WHEREOF, the Parties hereto have set their hands and affixed their respective seals the day and year first above written.

LESSOR:

The City of Cheyenne, a municipal corporation
organized under the laws of the State of Wyoming

By: _____
Name: _____
Title: _____
Date: _____

LESSEE:

Verizon Wireless (VAW) LLC
d/b/a Verizon Wireless

By: _____
Brian Mecum
Area Vice President Network
Date: _____

EXHIBIT “A-1”

SITE PLAN

EXHIBIT “A-2”

SURVEY

EXHIBIT "B"

Parcel A:

A parcel of land in Tract 10 of Park Plaza Tech Center, according to the Official Plat thereof filed for record April 3, 1975 in Plat Cabinet 3, Slot 193, of the Records of Laramie County, Wyoming, more particularly described as follows:

Beginning at the southwest corner of Tract 10 of said subdivision, thence North along the east right-of-way line of Ocean Loop a distance of 60.16 feet; thence northeasterly along the arc of a curve to the right having a radius of 370.14 feet, a central angle of $23^{\circ}54'18''$, and a length of 154.43 feet, said arc being along the east right-of-way line of Ocean Loop; thence northeasterly along the arc of a curve to the left having a radius of 430.14 feet, a central angle of $11^{\circ}58'02''$, and a length of 89.84 feet, said arc being along the east right-of-way line of Ocean Loop; thence $S.78^{\circ}03'44''E.$ a distance of 179.53 feet; thence South 259.61 feet to a point on the north right-of-way line of Dell Range Boulevard; thence $N.89^{\circ}41'25''W.$ along said north right-of-way line of Dell Range Boulevard a distance of 235.00 feet to the Point of Beginning.

AND

Parcel B:

A parcel of land in Tract 10 of Park Plaza Tech Center, according to the Official Plat thereof filed for record April 3, 1975 in Plat Cabinet 3, Slot 193, of the Records of Laramie County, Wyoming, more particularly described as follows:

Beginning at the southeast corner of Tract 10 of said subdivision, thence North a distance of 384.67 feet to the northeast corner of said Tract 10; thence $N.89^{\circ}39'39''W.$ a distance of 296.12 feet to the northwest corner of said Tract 10, a point on the east right-of-way line of Ocean Loop; thence southwesterly along the arc of a curve to the right having a radius of 430.14 feet, a central angle of $11^{\circ}56'16''$, and a length of 89.62 feet, said arc being along the east right-of-way line of Ocean Loop; thence $S.78^{\circ}03'44''E.$ a distance of 179.53 feet; thence South a distance of 259.61 feet to a point on the north right-of-way line of Dell Range Boulevard; thence $S.89^{\circ}41'25''E.$ along said north right-of-way line of Dell Range Boulevard a distance of 129.77 feet to the Point of Beginning.